

From the beginning of the 20th century, the demand for gender equality arose worldwide. In this context, India, through its Constitution, made efforts to provide equal rights to men and women by eliminating discrimination based on caste, religion, and gender (Article 15, Fundamental Rights).

Note:- **Note:** Article 15(3) – Allows the State to make special provisions for the protection and welfare of women and children.

Additionally, under constitutional provisions, numerous schemes and programs have been formulated for the development and empowerment of women.

Global efforts for women's empowerment

Efforts by the United Nations (UN):

- In 1975, the UN declared the International Women's Day and initiated its celebration on 8th March every year.
- The period 1976–1985 was declared the UN Decade for Women.
- In 1979, the Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW) was adopted.
- India signed this convention on 9th July 1993, with certain amendments, giving it final approval.

Efforts by India

- The National Commission for Women (NCW) was established on 31 January 1992 as a statutory body under the National Commission for Women Act, 1990.
- In 1995, in line with the outcomes of the 4th World Women's Conference held in Beijing, China, the first National Policy for Women, 1996, was issued.
- **By amending the earlier policy, the National Policy for Empowerment of Women, 2001, was declared (with some revisions in 2016).**

Efforts by Rajasthan State

- The state enacted the Rajasthan State Commission For Women Act, 1999, and on 15 May 1999, the Rajasthan State Women's Commission (RSCW) was constituted as a statutory commission.

Rajasthan State Women Commission (RSCW)		
Rajasthan State Commission For Women Act, 1999	Bill introduced: 23 April 1999	Enacted: 28 April 1999
Formation of State Women's Commission: 15 May 1999	Total Sections: 22	Act Number: 4 of 1999
Rajasthan State Women's Commission (Regulation), 2007 – Issued on 10 August 2007.		

Statutory Provision

Unfair practice [Section 2(D)]	Unfair practice refers to any discrimination based on gender that results in the violation of a woman's constitutional rights or her social, economic, political, and fundamental freedoms, or — any act that causes a woman mental or physical suffering and includes her gender-based harassment. Such behavior shall be considered unfair practice.
Composition (Section-3)	One Chairperson + 4 other members [3 Members + 1 Member Secretary (appointment of Member Secretary by the State Government)] Appointment: Chairperson and members are appointed by the State Government. Eligibility of Chairperson: A renowned woman with sufficient knowledge and experience in women-related issues and problems. Other Members: - One woman member must be from the Scheduled Caste or Scheduled Tribe category. One woman member must be from the Other Backward Class. Eligibility of Members: Should have experience in protecting women's interests and resolving issues related to the safeguarding of their rights. One Member Secretary: An officer of RAS or higher rank (to carry out administrative duties assigned by the Commission).
Term of Office and Conditions of Service (Section 4)	➤ Tenure – Maximum 3 years from the date of assumption of office (no provision for maximum or minimum age limit). ➤ Resignation – To be submitted to the State Government (appointment of a new member for the remaining tenure). ➤ Salary/Allowances – As determined by the State Government.
Meetings and Quorum	At least one meeting is mandatory every two months (Section 15) Quorum – A total of 3 members including the Chairperson (1 Chairperson + 2 Members) (Section 5)
Functions of the Commission (Section 11)	➤ To investigate all acts of injustice against women and recommend appropriate action to the Government. ➤ To take steps to make existing laws more effective and ensure their proper implementation. ➤ To review existing laws and recommend suitable amendments to the Government. ➤ To prevent discrimination against women in State public services and State public sector undertakings. ➤ To make efforts to improve the status of women through women-related welfare schemes. ➤ To recommend strict action to the Government against any government employee acting against the interests of women. ➤ To submit its annual report to the State Government.

Powers (Section 10)	➤ During the investigation of allegations, the Commission shall have the powers of a Civil Court under the CPC, 1908.
Inquiry (Section 12)	➤ Complaints may be presented before the Commission by the following (complaints regarding unfair practice with women): ➤ A written complaint by the victim herself, or by a person having knowledge of ill-treatment against a woman, or by women-related NGOs. ➤ Suo motu cognizance by the Commission. ➤ Inquiry on the request of the Government. Note: Section 12(4) – Information regarding the action taken by the State Government on the recommendations made by the Commission shall be sent to the Commission within 3 months. Section 13 – Recommendation to the Government to initiate lawful legal proceedings and prosecution against the offender.
Annual Report (Section 14)	➤ To be submitted to the State Government (the Commission may also submit a special report, if necessary).
Removal (Section 8)	➤ The Chairperson and Members of the Commission may be removed from office by the State Government on the following six grounds: (1) Declared insolvent (2) Convicted by a court of law (3) Declared of unsound mind (4) Incapacity to perform duties (5) Misuse of office (6) Absence from three consecutive meetings without the permission of the Chairperson
Consultation (Section 16)	➤ The State Government consults the Commission on major policy matters affecting women.
Grants (Section 18)	➤ Grants are provided to the Commission by the State Government after the passing of the Appropriation Bill in the Legislature.
Donations / Contributions (Section 19)	➤ The Commission may accept donations from any person or institution with the prior permission of the State Government.
Section -21	➤ This Act does not apply to the Central Government or its public authorities and public sector undertakings.
Section -22	➤ The power to make rules relating to the Commission rests with the State Government.

Section	Provision	Section	Provision
Section 1	Short title, extent, and commencement	Section 12	Inquiry into unfair practice
Section 2	Definitions	Section 13	Initiation of prosecution
Section 2D	Unfair practice	Section 14	Annual and special reports
Section 3	Constitution of the Commission	Section 15	Sittings of the Commission
Section 4	Term of office and condition of service of members	Section 16	Consultation of the Commission by the State Government
Section 5	Quorum	Section 17	Members and officers to be public servants
Section 6	Disposal of business	Section 18	Grants by the State Government
Section 7	Orders not invalid due to any vacancy	Section 19	Donations and contributions to the Commission
Section 8	Removal of the Chairperson/Members	Section 20	Accounts and audit
Section 9	Officers and employees of the Commission	Section 21	Act not applicable to Central public authorities
Section 10	Powers of the Commission	Section 22	Power to make rules
Section 11	Functions of the Commission	—	—

Persons:

S. No.	Chairperson	Tenure	S. No.	Chairperson	Tenure
1	Smt. Kanta Kathuria	25.05.1999 – 24.05.2002	4	Dr. Lad Kumari Jain	24.11.2011 – 23.11.2014
2	Prof. Pawan Surana	25.01.2003 – 27.01.2006	5	Smt. Suman Sharma	20.10.2015 – 19.10.2018
3	Smt. Tara Bhandari	15.04.2006 – 04.04.2009	6	Smt. Rehana Riaz Chishti	11.02.2022 – 10.02.2025

Acting Chairperson	Chairperson and Members at the Time of its Constitution
1. Smt. Meera Maharshi– 17.10.2009-18.08.2010 2. Smt. Sarita Singh – 24.03.2011-23.11.2011	Chairperson: Smt. Kanta Kathuria Members- 1. Smt. Nagendra Bala (the State's first Zila Pramukh) 2. Smt. Sunita Satyarthi (served two terms)

Note:- Members who served two terms: (1) Smt. Damyanti Bakolia (2) Smt. Sunita Satyarthi